

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****LUIS VELAZQUEZ,**

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. EVANGELLOS GEORGAKIS (SHIELD# 23632)
P.O. JOHN DOE**

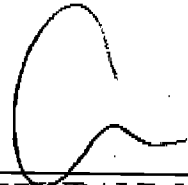
Defendant.

Index No. _____

Purchased _____

Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 18, 2023
MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

295 Madison Avenue, 12th Floor

New York, New York 10017

(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

P.O. EVANGELLOS GEORGAKIS (SHIELD# 23632)

52nd PRECINCT

3016 Webster Avenue
Bronx, NY 10467

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

LUIS VELAZQUEZ

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
P.O. EVANGELLOS GEORGAKIS (SHIELD# 23632)
P.O. JOHN DOE**

Defendant.

Plaintiff LUIS VELAZQUEZ, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by
virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD")
officers, mentioned herein, including P.O. Evangellos Georgakis
("GEORGAKIS") were, at the time of the occurrence, police officers of
Defendant CITY, and at all times herein were acting in such capacity as the
agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Luis Velazquez ("VELAZQUEZ") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 8:55pm on October 9, 2022, in and around E. 187th Street and Marion Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. On October 9th at approximately 8:55pm, VELAZQUEZ was in the Fordham area of Bronx County.

10. VELAZQUEZ was on a motor scooter headed towards the Metro North station to drop off his friend.
11. During the ride, an unmarked police vehicle trailed behind him and put its lights on, but no siren.
12. Thinking the police vehicle wanted to simply pass by VELAZQUEZ veered over to the right lane to allow the police vehicle to pass.
13. However, the police vehicle pulled behind VELAZQUEZ's scooter.
14. Due to negative prior experiences with the NYPD, VELAZQUEZ parked his scooter and left the area to avoid any interaction with the police.
15. The NYPD officers in the vehicle, including GEORGAKIS, exited the vehicle and pursued VELAZQUEZ.
16. Once in the vicinity of E. 187th Street and Marion Avenue, VELAZQUEZ came up on a steep staircase leading from Marion Avenue to Elm Place and stopped at the top of the staircase.
17. GEORGAKIS approached VELAZQUEZ from behind and pushed him down the aforementioned stairs.
18. Once VELAZQUEZ landed on the ground below, his left ankle snapped in half, resulting in the bone sticking out of the skin.
19. Despite VELAZQUEZ laying on the ground screaming in agony, P.O. John Doe ran up to VELAZQUEZ and punched him in the face.
20. P.O. John Doe then handcuffed VELAZQUEZ.
21. Once P.O. John Doe realized the extent of VELAZQUEZ's injury, he called for an ambulance.

22. VELAZQUEZ was taken to St. Barnabas hospital in Bronx County, where surgery was performed.
23. VELAZQUEZ had a metal plate inserted in his left leg along with multiple screws.
24. VELAZQUEZ was eventually given 4 summonses upon his release from the hospital 5 days later.
25. VELAZQUEZ was charged with Reckless Driving, Driving without Insurance, and two counts of Disorderly Conduct.
26. VELAZQUEZ appeared in Bronx Criminal Court on November 16, 2022, in front of Judge Lipman and received an Adjournment in Contemplation of Dismissal pursuant to CPL Sec 160.55.

FIRST CAUSE OF ACTION: FALSE ARREST

27. Paragraphs 8-26 are incorporated by reference as fully set forth herein
28. GEORGAKIS and DOE arrested VELAZQUEZ intentionally, and VELAZQUEZ at all times was aware he was being arrested and did not consent to being arrested.
29. As a result of being arrested by P.O. DOE and the NYPD officers, VELAZQUEZ suffered psychological and physical injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. The officers who arrested the Plaintiff, as described in paragraphs 8-26, intended to confine him. VELAZQUEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.
33. In arresting VELAZQUEZ as described in paragraphs 8-26, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
34. In arresting Plaintiff as described in paragraphs 8-26, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
35. As a result of defendants' abuse of process, Plaintiff sustained multiple injuries, including a compound fracture of his left leg/ankle, loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.
37. In arresting VELAZQUEZ as described in paragraphs 8-26, the arresting NYPD officers, including GEORGAKIS and DOE acted with malice and without probable cause.

38. As a result of being maliciously prosecuted by the arresting NYPD officers, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.
40. Immediately before the arresting NYPD officers arrested Plaintiff as described in paragraphs 8-26, the officers intentionally placed Plaintiff in apprehension of imminent harmful or offensive contact without Plaintiff's consent.

SIXTH CAUSE OF ACTION: BATTERY

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.
42. The NYPD officers who arrested VELAZQUEZ, as described in paragraphs 8-26, wrongfully touched, grabbed, handcuffed and seized the Plaintiff in an excessive manner, subjecting the Plaintiff to harmful and offensive bodily contact. The arresting officers lacked legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to the illegal touching, nor was the touching privileged by law.
43. The aforementioned behavior of the NYPD Officers, including GEORGAKIS and DOE, was the direct and proximate cause of the compound fracture of the left leg suffered by VELAZQUEZ.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.
45. Upon information and belief, the officers who illegally arrested and battered Plaintiff were at all times relevant duly appointed and acting officers of the City of New York Police Department.
46. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
47. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
48. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
49. On or about October 9, 2022, as described in paragraphs 8-26, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
50. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

51. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

52. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.

54. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

55. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

56. Paragraphs 1-55 are incorporated by reference as though fully set forth herein.

57. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

58. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

59. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

(b) Force cannot be used against an individual who does not physically resist arrest.

60. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

61. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.
62. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff LUIS VELAZQUEZ demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

January 18, 2023

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC



By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

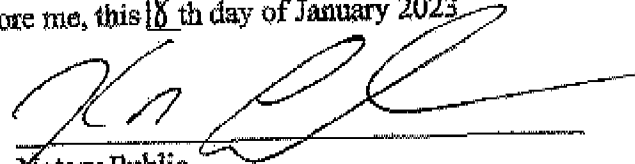
The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
January 18, 2023

Deponented by:

LUIS VELAZQUEZ

Subscribed and sworn to before me, this 18 th day of January 2023


Notary Public

KAWAN A. LOVELACE
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02L06417580
Qualified in Queens County
Commission Expires May 17, 2025

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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P.O. JOHN DOE**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

P.O. EVANGELLOS GEORGAKIS (SHIELD# 23632)

52nd PRECINCT

3016 Webster Avenue
Bronx, NY 10467